

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
MAMADOU DIARRA,

Plaintiff

- against -

**THE CITY OF NEW YORK, SERGEANT JOHN
STANCHIC of BX TC (Shield No. 5182) and POLICE
OFFICER CHRISTIN A. MONCION of the 52nd
Precinct (Shield No. 11670),**Defendants.
-----X**Index No.** _____
Purchased _____
Plaintiff designates Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
June 6, 2018

JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(718) 618-7509Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
MAMADOU DIARRA,

Plaintiff,**Index No.
Verified Complaint****- against -**

**THE CITY OF NEW YORK, SERGEANT JOHN
STANCHIC of BX TC (Shield No. 5182) and POLICE
OFFICER CHRISTIN A. MONCION of the 52nd
Precinct (Shield No. 11670),**

Defendants.

-----X

Plaintiff MAMADOU DIARRA, by his attorney JEFFREY W. RIZZO, ESQ.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff MAMADOU DIARRA
("MR. DIARRA") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK ("CITY"), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant SERGEANT JOHN
STANCHIC ("STANCHIC") was and still is a Police Officer employed by the Defendant
CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to March 9, 2017, STANCHIC was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of STANCHIC described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, Defendant POLICE OFFICER CHRISTIN A. MONCION ("MONCION") was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

7. On and prior to March 9, 2017, MONCION was employed by Defendant CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

8. The actions of MONCION described herein were performed within the scope of her employment and authority and while she acted as an agent, servant and employee of Defendant CITY and NYPD, acting under the supervision of said department and according to their official duties.

BACKGROUND

9. On or about March 9, 2017 STANCHIC and MONCION, acting as agents, servants and employees of Defendant CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. DIARRA of having committed the crime of Patronizing a Prostitute in the Third Degree (P.L. § 230.04).

10. On or about March 9, 2017 Defendants, their agents, servants and/or employees, intentionally placed MR. DIARRA under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

11. Thereafter, defendants repeatedly gave false and misleading reports and testimony regarding the facts and circumstances of plaintiff's arrest.

12. On or about March 10, 2017 a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. DIARRA was commenced.

13. After his arrest, MR. DIARRA was arraigned in Bronx County, Criminal Court on March 10, 2017 at which point he was released on his own recognizance.

14. On April 12, 2018 MR. DIARRA made a court appearance at which time the criminal matter was adjourned in contemplation of dismissal.

15. As a result of the treatment of MR. DIARRA by the Defendants, MR. DIARRA was denied liberty by being falsely arrested and imprisoned.

16. MR. DIARRA suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested, falsely imprisoned, maliciously prosecuted and detained, MR. DIARRA suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

17. On May 10, 2018, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

18. On May 14, 2018 Plaintiff filed an Order to Show Cause in Supreme Court, Bronx County seeking to deem the Notice of Claim previously served as timely.

19. The Order to Show Cause was granted without opposition from defendants and an Order was entered requiring defendants to serve notice of a “50-h hearing” within 45 days.

20. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

21. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

22. Paragraphs 1-21 are incorporated by reference as fully set forth herein.

23. On March 9, 2017 at approximately 10:30 p.m., in the vicinity of Jerome Avenue and West 192nd Street, Bronx County, Defendants along with other NYPD officers wrongfully touched, grabbed, handcuffed, directed other officers to seize and seized MR. DIARRA, in an excessive manner about his person, causing MR. DIARRA physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. DIARRA was aware of his arrest and confinement as described in paragraphs 1-21, and he did not consent to that arrest or confinement, nor was it privileged by law.

24. As a result of being falsely arrested by the Defendants, MR. DIARRA sustained multiple injuries. He was denied liberty and the ability to enjoy life. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.

26. The Defendants, their agents, servants and employees, arrested and confined MR. DIARRA, as described in paragraphs 1-24, and intended to confine MR. DIARRA. MR. DIARRA was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

27. As a result of being falsely imprisoned by the Defendants, MR. DIARRA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ASSAULT AND BATTERY

28. Paragraphs 1-27 are incorporated by reference as though fully set forth herein.

29. On March 9, 2017 at approximately 10:30 p.m., in the vicinity of Jerome Avenue and East 192nd Street, Bronx County, Defendants STANCHIC and MONCION along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MR. DIARRA, in an excessive manner about his person, causing MR. DIARRA physical pain and mental suffering.

30. That on or about March 9, 2017, and while in the custody of the Defendants in the County of Bronx, City of New York, the Plaintiff MR. DIARRA was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by STANCHIC and MONCION, along with other New York City police officers who were

acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

31. That on or about March 9, 2017, STANCHIC and MONCION, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. DIARRA, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. DIARRA and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. DIARRA and caused such battery in and about his chest, body and limbs. At no time did MR. DIARRA consent to the aforesaid assault and battery.

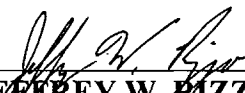
32. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and/or grabbing of MR. DIARRA, was an assault and battery beyond that which was necessary to make the arrest.

33. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular STANCHIC and MONCION, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. DIARRA suffered bodily injury in and about his body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
June 6, 2018

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
718-618-7509

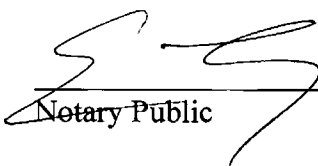
VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

MAMADOU DIARRA, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.

DIARRA
MAMADOU DIARRA

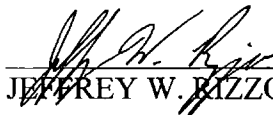
Sworn to before me, this 6th day of June, 2018.


Notary Public

ERIC D. LEVY
Notary Public, State of New York
Qualified in Kings County
Reg. #02LE6258970
My Comm. Exp. April 9, 2020

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


JEFFREY W. RIZZO, ESQ.